

24VECV05898 24VECV05898

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-15

Motion: MOVING DEFENDANT IRA WARDONO'S DEMURRER TO PLAINTIFF'S COMPLAINT

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Case Number: 24VECV05898 Hearing Date: September 15, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

BROOKE POPPINGA, Individually and as

Successor in Interest for JULIUS MAXIMUS

POPPINGA; and BRADY POPPINGA,

individually,

Plaintiffs,

vs.

PROVIDENCE CEDARS-SINAI TARZANA

MEDICAL CENTER; BOBAK ZONNOOR,

M.D.; DON JOHN, M.D.; KYLE N. WILLSEY, D.O.; CESAR CHAVARRIA, M.D.; MARC D. DADIOS, M.D.; DAVID A. FERRY, M.D.; ARIELLE CZERWINSKI, M.D.; SHARON E. LEE, M.D.; OREN N. HIRSCH, M.D.; JULIE WILSON, RRT; NARESH THANGIAH, RRT; MARGARITA MORALES, RRT; and DOES 1 through 100, inclusive,

Defendants.

CASE NO: 24VECV05898

[TENTATIVE] ORDER RE:

MOVING DEFENDANT IRA WARDONO'S DEMURRER TO PLAINTIFF'S COMPLAINT

Dept. W

8:30 a.m.

September 15, 2026

[TENTATIVE] ORDER: The Court OVERRULES Moving Defendant's demurrer to the first and second causes of action.

Background

This is a medical malpractice and wrongful death case. Plaintiffs are Brooke and Brady Poppinga, two parents suing individually, and as successors in interest to their deceased 17-year-old son, Julius Poppinga (herein "decedent").

Plaintiffs allege that on August 27, 2023, their son, decedent, was admitted to the emergency department at Defendant Providence Cedars-Sinai Tarzana Medical Center due for difficulty breathing and chest pain. Decedent was admitted to the Pediatric ICU with a diagnosis of asthma exacerbation. There, Decedent was cared for by numerous doctors, including Moving Defendant Ira Wardono.

Given decedent's difficulty breathing, and his history of asthma, he was given oxygen and monitored. Decedent was also given a chest x-ray, which showed low lung volumes. Decedent's history was taken the next day, where he explained that his symptoms started on August 14, but had been mild. Decedent was then admitted for inpatient treatment and was given fluids. Decedent was also given multiple albuterol treatments to relax his airways. Over the rest of the day, decedent was treated and evaluated by numerous doctors.

On August 29, 2023, decedent was still having difficulty breathing and appeared anxious. He also temporarily lost consciousness. At the time, decedent was being cared for by Non-Moving Defendant Dr. Arielle Czerwinski. Dr. Czerwinski briefly left the room to place multiple treatment orders. When she came back, she was notified that decedent had stopped breathing and had flat-lined. Decedent's doctors intubated him and performed chest compressions in an attempt to

resuscitate him. Tragically, they were unable to stabilize decedent, and he died shortly thereafter. A subsequent autopsy concluded that decedent had died from a pulmonary embolism.

On November 25, 2024, Plaintiffs brought suit against Defendant Providence Cedars-Sinai Tarzana Medical Center, Moving Defendant Oren Hirsch, as well as numerous other doctors, alleging four causes of action: 1) wrongful death due to medical negligence, 2) medical negligence survival action, 3) NIED, and 4) loss of consortium. Plaintiffs argue that Defendants were medically negligent in their misdiagnosis and treatment of decedent, and that decedent died as a result of this negligence.

On May 27, 2026, Plaintiffs added Moving Defendant Dr. Ira Wardono to this case via a doe amendment.

Now, Moving Defendant Ira Wardono demurs to Plaintiff's first two causes of action – the only two claims alleged against Moving Defendant.

Meet and Confer

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (CCP § 430.41(a) [emphasis added].) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3).)

Here, Moving Defendant provides the declaration of Sara Mores, who states that on July 13, 2026, the parties met and conferred over the phone and discussed the issue raised in this pleading. (Mores Decl. ¶ 4.) Unfortunately, the parties were unable to reach an informal agreement. (Ibid.) For these reasons, the Court finds that Moving Defendant has met their meet and confer obligations.

Discussion

Moving Defendant demurs to the first and second causes of action for wrongful death and medical negligence, arguing that both claims are time-barred. (Demurrer, p. 2:6-11.)

A demurrer tests the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (CCP §§ 422.10, 589; see, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pled in the complaint are assumed to be true. (Id. at 994.) This means that, in order for Moving Defendant's demurrer to succeed, Plaintiff's first two causes of action must be facially time-barred.

Under CCP § 340.5, "[i]n an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." (CCP § 340.5.)

Here, it is undisputed that Plaintiffs' original lawsuit was timely filed. Decedent Julius Poppinga died on August 29, 2023. (Compl. ¶ 20.) Plaintiffs' initial Complaint was filed on November 25, 2024. (Compl. p. 1.) Plaintiffs served the known Defendants with Section 364 Notice of Intent letters, which tolled the statute of limitations for an additional 90 days. (Opp. p. 5:23-25.) Instead, Moving Defendant challenges the timeliness of Plaintiff's May 27, 2026, doe amendment, which added Moving Defendant Ira Wardono to the lawsuit. (Opp. Schumacher Decl. ¶ 3.)

Typically, a doe amendment is affected by the "relation back" doctrine, which, "deems a later-filed pleading to have been filed at the time of an earlier complaint which met the applicable

limitations period." (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1278.) However, Moving Defendant argues that the relation back doctrine does not apply in this case.

In order for the relation-back doctrine to apply, "the amended complaint must (1) rest on the same general set of facts, (2) involve the same injury, and (3) refer to the same instrumentality, as the original one." (Ibid.)¹ Additionally, the plaintiff must be genuinely ignorant of the doe defendant at the time the original Complaint was filed. (*Woo v. Superior Ct.*, (1999) 75 Cal. App. 4th 169, 177.)

Here, Moving Defendant argues that Plaintiffs cannot meet this final requirement, because they were not genuinely ignorant of his involvement at the time they originally filed the Complaint. (Demurrer, pp. 6:21-7:2.) In support of this claim, Moving

Defendant points to the fact that his name appears seven separate times in Decedent's medical records. (Ibid.) Thus, Moving Defendant concludes that Plaintiffs were not ignorant of his name and role in decedents treatment, and therefore the relation back doctrine does not apply. (Ibid.)

In Opposition, Plaintiffs dispute that they were aware of Moving Defendant's role in Decedent's treatment. Plaintiffs assert that the first time they learned of Moving Defendant's involvement was on May 4, 2026, when Defendant, PCSTMC, served Supplemental Responses to Plaintiffs' Requests for Production of Documents (Set One), which included concurrently produced copies of the PICU Staff Sheet/Schedule for August 27, through August 30, 2023. (Opp. Schumacher Decl. ¶ 8.)

Plaintiffs also argue that six of the "seven times" Moving Defendant's name is mentioned in Decedent's medical records are all references to a single order for Pepcid, issued on August 28,

2023. (Opp. p. 10:5-7; see also, Opp. Ex. D.) Thus, while Moving Defendant's name was technically present, Plaintiffs provide compelling that they did not know the extent of her role until recently.

Additionally, Plaintiffs point out that Moving Defendant, "was never once identified or referenced by name – whether as a witness or as a healthcare provider involved in or consulted with during and/or in connection with the Decedent's care and treatment at PCSTMC – in any of the verified responses to written discovery received from any of the Defendants." (Opp. Schumacher Decl. ¶¶ 9-10.)

In summary, Moving Defendant's demurrer rests on the assertion that the relation back doctrine does not apply to her. Moving Defendant's argument as to the relation back doctrine is based almost entirely on the fact that her name appears multiple times in Decedent's medical records – meaning Plaintiffs must have known about her. However, Plaintiffs have explained that the presence of Moving Defendant's name was insufficient to put them on notice of her involvement in Decedents treatment. Additionally, Plaintiffs have provided other evidence to suggest that they were ignorant of Moving Defendant's role in this case. Thus, the Court finds that Plaintiffs were ignorant of Moving Defendant's role, meaning the relation back doctrine does apply, and therefore these claims are not time-barred.

For these reasons, the Court OVERRULES Moving Defendant's demurrer to the first and second causes of action.

Conclusion

The Court OVERRULES Moving Defendant's demurrer to the first and second causes of action.

IT IS SO ORDERED, Plaintiffs TO GIVE NOTICE.

September 15, 2026

Judge of the Superior Court